



# Instructions for Petition for Alien Fiancé(e)

Department of Homeland Security  
U.S. Citizenship and Immigration Services

USCIS  
**Form I-129F**  
OMB No. 1615-0001  
Expires 03/31/2027

## What is the Purpose of Form I-129F?

Use this petition to classify:

1. Your alien fiancé(e) as a K-1 nonimmigrant so that he or she may enter the United States to marry you and pursue adjustment of status to lawful permanent resident; or
2. Your alien spouse as a K-3 nonimmigrant, so that he or she may enter the United States to await the availability of an immigrant visa and pursue adjustment of status to lawful permanent resident.

**NOTE:** A child (unmarried and under 21 years of age) of a K-1 or K-3 nonimmigrant may apply for a nonimmigrant visa to accompany or follow-to-join the K-1 or K-3 parent. You do not need to file a separate petition to classify the child as a K nonimmigrant. Children of K-1s are classified as K-2 nonimmigrants, and children of K-3s are classified as K-4 nonimmigrants.

**NOTE:** A K-4 nonimmigrant is only eligible to adjust to lawful permanent resident status if he or she is under 18 years of age when you and the K-3 parent marry and you file Form I-130, Petition for Alien Relative, on the K-4's behalf before the K-4 reaches 21 years of age.

## Who May File Form I-129F?

You may file this petition if you are a U.S. citizen and:

1. You and your fiancé(e):
  - A. Are legally free to marry and intend to marry within 90 days of your fiancé(e)'s admission to the United States; and
  - B. Have met each other in person within the two years immediately before you filed this petition, unless you establish that either:
    - (1) The requirement to meet your fiancé(e) in person would violate strict and long-established customs of your fiancé(e)'s foreign culture or social practice, and that any and all aspects of the traditional arrangements have been or will be met in accordance with the custom or practice; or
    - (2) The requirement to meet your fiancé(e) in person would result in extreme hardship to you; or
2. You have filed or are filing Form I-130 on behalf of your spouse and wish to have your spouse enter as a nonimmigrant to await the immediate availability of an immigrant visa and to file for adjustment of status.

**NOTE:** If you have children with your beneficiary, they might have acquired U.S. citizenship through you. Check the U.S. Department of State (DOS) website at <http://travel.state.gov> for more information.

## General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

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**Signature.** You (or your signing authority) must properly complete your petition. USCIS will not accept a stamped or typewritten name in place of any signature on this petition. If you are under 14 years of age, your parent or legal guardian may sign the petition on your behalf. A legal guardian may also sign for a mentally incompetent person. If your petition is not signed, or if the signature is not valid, we will reject your petition. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

**Validity of Signatures.** USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

**Filing Fee.** See Form G-1055, available at [www.uscis.gov/forms](http://www.uscis.gov/forms), for specific information about the fees applicable to this form.

**Evidence.** When you file your petition, you must submit all evidence and supporting documents listed in the **What Evidence Must You Submit** and/or **Specific Instructions** sections of these Instructions.

**Biometric Services Appointment.** USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the petition;
2. You reviewed and understood all of the information contained in, and submitted with, your petition; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your petition.

**Copies.** You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

**NOTE:** If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

**Translations.** If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information.

**USCIS Contact Center.** For additional information on the petition and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at [www.uscis.gov/contactcenter](http://www.uscis.gov/contactcenter) or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

**Disability Accommodations/Modifications.** To request a disability accommodation/modification, follow the instructions on your appointment notice or at [www.uscis.gov/accommodationsinfo](http://www.uscis.gov/accommodationsinfo).

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## How To Complete Form I-129F

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this petition, use the space provided in **Part 8. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

### Specific Instructions

#### Part 1. Information About You

**Item Number 1. Alien Registration Number (A-Number)** (if any). Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an "A" and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."

**Item Number 2. USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

**Item Number 3. U.S. Social Security Number** (if any). Provide your U.S. Social Security Number.

**Item Numbers 4.a. - 5. Classification Requested.** Select the box that indicates whether you are filing for your fiancé(e) or your spouse. If you are filing for your spouse, indicate whether you have filed Form I-130 on that beneficiary's behalf. You must include evidence that you filed Form I-130. Evidence may include a concurrently filed Form I-130, a Form I-797 Receipt or Approval Notice for Form I-130, a printout from the USCIS website showing a pending or approved Form I-130, or the receipt number for your Form I-130.

**Item Numbers 6.a. - 6.c. Your Full Name.** Provide your full legal name.

**Item Numbers 7.a. - 7.c. Other Names Used.** Provide any other names you have used including your aliases, maiden name, and nicknames. If you have used additional names, provide them in **Part 8. Additional Information**.

**Item Numbers 8.a. - 8.j. Your Mailing Address.** Provide the address where you would like to receive written correspondence regarding your petition.

**Item Numbers 9.a. - 12.b. Your Address History.** Provide the addresses for the places you have resided over the last five years.

**Item Numbers 13. - 20.b. Your Employment History.** Provide the names and addresses of your employers, your occupations, and the dates of employment for the jobs you have held over the last five years.

**Item Number 21. Sex.** Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

**Item Number 22. Date of Birth.** Provide your date of birth in mm/dd/yyyy format.

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**Item Number 23. Marital Status.** Indicate your current marital status.

**Item Numbers 24. - 26. Place of Birth.** Provide the name of the city or town, province or state, and country where you were born.

**Item Numbers 27.a. - 36.b. Information About Your Parents.** Provide each of your parents' full names, dates of birth, places of birth, and current cities/town/villages and countries of residence.

**Item Numbers 37. - 39. Name of Previous Spouse.** Indicate whether you have been previously married. If you answered "Yes," provide the full names of each previous spouse and the date that each marriage ended. If you have more than one previous spouse, use **Part 8. Additional Information** to respond to these questions for each person.

**Item Numbers 40.a. - 42.c. Your Citizenship Information.** Select the box that describes how you obtained your U.S. citizenship. Indicate whether you obtained a Certificate of Naturalization or a Certificate of Citizenship and provide the date and place the document was issued.

**Item Numbers 43. - 47. Previous Filings.** Indicate whether you have ever filed another Form I-129F for any other spouse or fiancé(e). If you respond "Yes," provide that person's full name and the person's A-Number (if any). Provide the date you filed the petition and the final action taken (for example, petition approved, denied, revoked, or withdrawn). If you have filed for more than one previous spouse or fiancé(e), use **Part 8. Additional Information** to respond to these questions for each beneficiary.

**Item Numbers 48. - 49.b. Ages of Children.** Indicate whether you have any children under 18 years of age. If you answered "Yes," provide the age for each of your children under 18 years of age. If you need extra space to complete this section, use the space provided in **Part 8. Additional Information**.

**Item Numbers 50.a. - 51.b. Places You Have Resided.** Provide all of the U.S. states and foreign countries in which you have resided since you reached 18 years of age. If you need extra space to complete this section, use the space provided in **Part 8. Additional Information**.

## **Part 2. Information About Your Beneficiary**

**Item Numbers 1.a. - 1.c. Your Beneficiary's Full Name.** Provide your beneficiary's full legal name.

**Item Number 2. A-Number** (if any). Provide your beneficiary's A-Number. We use your A-Number to identify your beneficiary's immigration records. It begins with an "A" and can be found on correspondence your beneficiary has received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print "N/A."

**Item Number 3. U.S. Social Security Number** (if any). Provide your beneficiary's U.S. Social Security Number.

**Item Number 4. Date of Birth.** Provide your beneficiary's date of birth in mm/dd/yyyy format.

**Item Number 5. Sex.** Indicate whether you are male or female as provided on your birth certificate issued at the time of birth or issued closest to the time of birth or in secondary evidence you provided to USCIS, if applicable.

**Item Number 6. Marital Status.** Indicate your beneficiary's current marital status.

**Item Numbers 7. - 9. Place of Birth.** Provide the name of the city or town and country where your beneficiary was born. If your beneficiary does not have citizenship in any country, type or print "stateless" and provide an explanation in **Part 8. Additional Information**.

**Item Numbers 10.a - 10.c. Other Names Used.** Provide any other names your beneficiary may have used including their aliases, maiden name, and nicknames. If you need extra space to complete this section, use the space provided in **Part 8. Additional Information**.

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**Item Numbers 11.a. - 11.i. Mailing Address for Your Beneficiary.** Provide your beneficiary's current mailing address. Provide the mailing address in the United States, if he or she has one.

**Item Numbers 12.a. - 15.b. Your Beneficiary's Address History.** Provide the addresses for the places your beneficiary has resided over the last five years.

**Item Numbers 16. - 23.b. Your Beneficiary's Employment History.** Provide the names and addresses of your beneficiary's employers, occupations, and the dates of employment for the jobs your beneficiary has held over the last five years.

**Item Number 24.a. - 33.b. Information About Your Beneficiary's Parents.** Provide each of your beneficiary's parents' full names, dates of birth, places of birth, and current cities and countries of residence.

**Item Numbers 34. - 36. Name of Previous Spouse.** Indicate whether your beneficiary has ever been previously married. If you answered "Yes," provide the full name of your beneficiary's previous spouse and the date that each marriage ended. If your beneficiary has more than one previous spouse, use the space provided in **Part 8. Additional Information** to respond to these questions for each spouse.

**Item Numbers 37. - 38.h. Form I-94 Arrival/Departure Record.** If U.S. Customs and Border Protection (CBP) or USCIS issued you a Form I-94, Arrival/Departure Record, provide your Form I-94 number and date that your authorized period of stay expires or expired (as shown on your Form I-94). The Form I-94 number also is known as the Departure Number on some versions of Form I-94.

**NOTE:** You may visit the CBP website at [www.cbp.gov/i94](http://www.cbp.gov/i94) to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at [www.uscis.gov/forms](http://www.uscis.gov/forms), for specific information about the fees applicable to Form I-102.

**Item Numbers 39. - 44.h. Children of Beneficiary.** Indicate whether your beneficiary has any children. If you answered "Yes," provide information about each child of your beneficiary. Include the child's full name, country of birth, and date of birth. If the child resides at a different address than your beneficiary, provide the address where the child currently resides. If your beneficiary has more than one child, use **Part 8. Additional Information** to respond to

**Item Numbers 40.a. - 44.h. for each child.** **Item Numbers 45.a. - 46. Address in the United States Where Your Beneficiary Intends to Live.** Provide the address and daytime telephone number where your beneficiary intends to live when he/she arrives in the United States.

**Item Numbers 47.a. - 48. Your Beneficiary's Physical Address Abroad.** Provide the address and daytime telephone number where your beneficiary currently resides abroad.

**Item Numbers 49.a. - 50.f. Your Beneficiary's Name and Address in His or Her Native Alphabet.** If your beneficiary's native alphabet does not use Roman letters, provide his or her name and physical address abroad in the native alphabet. Otherwise, skip to the next question (**Item Number 51.**).

**Item Numbers 51. - 52. Is Your Beneficiary Related to You?** Indicate whether you and your beneficiary have a familial relationship and if so, describe the nature and degree of relationship (for example, second cousins, maternal aunt or uncle). Select "N/A" if the beneficiary is your spouse.

**Item Numbers 53. - 54. Have you and your fiancé(e) met in person during the two years immediately before filing this petition?** Indicate whether you and your fiancé(e) have seen each other in person during the two year period immediately before to filing your petition. Select "N/A" if the beneficiary is your spouse.

If you respond "Yes" to **Item Number 53.**, use **Item Number 54.** to describe the circumstances of your in-person meeting. Attach evidence to demonstrate that you were in each other's physical presence during the required two year period. If you need extra space to complete this section, use the space provided in **Part 8. Additional Information.**

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If you respond “No” to **Item Number 53.**, explain in detail any reasons you may have for requesting an exemption from the requirement that you and your fiancé(e) must have met in person during the two years immediately before filing this petition in **Item Number 54.** You must request a waiver and demonstrate that meeting in person would have posed an extreme hardship on you or violated strict and long-established customs of your fiancé(e)’s foreign culture or social practice, and that any and all aspects of the traditional arrangements have been or will be met in accordance with the custom or practice. Include evidence to support your claim. Evidence may include things like medical records, statements from religious leaders, or evidence of immediate danger. If you need extra space to complete this section, use the space provided in **Part 8. Additional Information.**

Select “N/A” in **Item Number 53.** if the beneficiary is your spouse.

**Item Numbers 55. - 61. International Marriage Broker (IMB) Information.** Indicate whether you met your beneficiary through the service of an IMB. If you respond “Yes,” provide the IMB’s name, organization name, website, mailing address, and daytime telephone number. For more information, including the definition of “international marriage broker,” refer to the **What are the Requirements of the International Marriage Broker Regulation Act** section of these Instructions.

**NOTE:** You must also provide a copy of the signed, written consent form that the IMB obtained from your beneficiary that authorized the release of the beneficiary’s personal contact information to you. If the consent form is written in any language other than English, you must provide a certified English translation with the form.

**Item Numbers 62.a. - 62.b. U.S. Embassy or U.S. Consulate Requested.** Provide the city or town and country of the U.S. Embassy or U.S. Consulate where your beneficiary will apply for his or her visa.

**NOTE:** Designation of a U.S. Embassy or U.S. Consulate outside the country in which your beneficiary resides does not guarantee acceptance for processing by that foreign post. Acceptance is at the discretion of the designated U.S. Embassy or U.S. Consulate.

**NOTE:** Under U.S. immigration law, a foreign national who marries a U.S. citizen outside the United States and seeks a K-3 visa must apply for the K-3 visa in the country where the marriage took place. In the event you and your spouse were married in the United States, you must list the country of your spouse’s (beneficiary’s) current residence provided in **Part 2., Item Numbers 47.a. - 47.f.**

### **Part 3. Other Information**

**Item Numbers 1. - 3.c. Criminal Information.** Indicate whether you have ever been the subject of a temporary or permanent protection order or restraining order (either civil or criminal) related to any of the crimes specified below, or arrested, or convicted of any of the crimes specified below. If you were ever arrested or convicted of any of the specified crimes, you must submit certified copies of all court and police records showing the charges and disposition for every arrest or conviction. You must do so even if your records were sealed, expunged, or otherwise cleared, and regardless of whether anyone, including a judge, law enforcement officer, or attorney, informed you that you no longer have a criminal record.

#### **1. Specified Crimes**

- A.** Convictions for domestic violence, sexual assault, child abuse or child neglect, dating violence, elder abuse, and stalking or an attempt to commit any such crime:

**NOTE:** The term “domestic violence” includes felony or misdemeanor crime of violence committed by a person.

- (1)** Who is a current or former spouse of the victim;
- (2)** With whom the victim shares a child in common;
- (3)** Who is cohabitating with or has cohabitated with the victim;
- (4)** Who is similarly situated to a spouse of the victim under the domestic or family violence laws of the relevant jurisdiction; or

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(5) Against whom the victim is protected under the jurisdiction's domestic or family violence laws.

- B. Convictions for homicide, murder, manslaughter, rape, abusive sexual contact, sexual exploitation, incest, torture, trafficking, peonage, holding hostage, involuntary servitude, slave trade, kidnapping, abduction, unlawful criminal restraint, false imprisonment, or an attempt to commit any of these crimes.
- C. At least three convictions for crimes relating to a controlled substance or alcohol not arising from a single act.
- D. Disclosure of criminal history to beneficiary. If your petition is approved, USCIS will provide a copy of your petition, including the information you submit regarding any protection or restraining orders or criminal history to DOS for distribution to the beneficiary of your petition. USCIS also will provide to DOS any criminal background information discovered independently while adjudicating this petition for disclosure to your beneficiary.

**NOTE:** The name and contact information of any person who was granted a protection or restraining order against you, or of any victim of a crime of violence you perpetrated, will remain confidential. However, DOS will disclose your relationship to this person or victim (for example, spouse, parent, former spouse) to the beneficiary.

**Item Number 4.a. Criminal Information.** Indicate whether you have ever been arrested, cited, charged, indicted, convicted, fined, or imprisoned for breaking or violating any law or ordinance in any country, for any offenses other than those you have already outlined in the previous section. Unless a traffic incident was alcohol- or drug-related or involved a fine of \$500 or more, you do not need to provide information on it.

**Item Number 4.b. Criminal History Documents.** If you indicated "Yes" in **Item Number 4.a.**, provide information that explains the circumstances, places, dates, and outcomes for each incident of arrest, citation, charge, indictment, conviction, fine, or imprisonment. You must submit court certified copies of the arrest record and/or disposition for each incident unless you submit a certified statement from the court indicating that no record exists of your arrest, citation, charge, indictment, conviction, fine, or imprisonment.

If you need extra space to complete this section, use the space provided in **Part 8. Additional Information**.

**Item Numbers 5.a. - 5.d. Multiple Filer Waiver Request.** You must request a waiver of the International Marriage Broker Regulation Act (IMBRA) filing limitations if:

1. You are filing this petition on behalf of your fiancé(e) and you previously filed Form I-129Fs on behalf of two or more fiancé(e) beneficiaries; or
2. You are filing this petition on behalf of your fiancé(e), you have previously had a Form I-129F approved, and less than two years have passed since the filing date of your previously approved petition.

Select the box that indicates the waiver you are requesting. You may request and support your waiver with additional information and/or explanation in **Part 8. Additional Information**, or by attaching a signed and dated letter according to the instructions for **Part 8**.

If you are filing for your spouse, waivers are not required. Select the box for **Item Number 5.d.** and skip to **Part 4**.

### Types of Waivers

**Item Number 5.a. General Waiver.** If you have never been convicted of a violent criminal offense against a person or persons, submit evidence to show why a waiver is appropriate in your case.

*Examples of such evidence may include, but are not limited to: a death certificate, police reports, news articles, or medical reports from a licensed medical professional regarding the death or incapacity of your previous fiancé(e) who was the beneficiary of a fiancé(e) petition you filed.*

**Item Number 5.b. Extraordinary Circumstances Waiver.** If you have ever been convicted of a violent criminal offense against a person or persons, USCIS will not grant a filing limitations waiver unless you submit evidence to demonstrate that extraordinary circumstances exist. In addition to evidence explaining the reasons for your multiple filings, you must also submit evidence of extraordinary circumstances.

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*Examples of such evidence may include, but are not limited to: police reports, court records, news articles, trial transcripts reflecting the nature and circumstances surrounding your violent criminal offenses, your rehabilitation, ties to the community, or records demonstrating good conduct and exemplary service in the uniformed services.*

**Item Number 5.c. Mandatory Waiver.** If you committed violent criminal offenses against a person or persons, but were battered or subjected to extreme cruelty by a family member or intimate partner at the time you committed your violent offenses, and you were not the primary perpetrator of violence in the relationship, you may still be eligible for a waiver if USCIS determines that you violated a protection order intended for your protection; you were acting in self-defense; or you committed, were arrested for, were convicted of, or pleaded guilty to committing a crime that did not result in serious bodily injury and there was a connection between the crime committed and you having been battered or subjected to extreme cruelty. You must submit evidence explaining the reasons for your multiple filings, as well as evidence to support a finding that you qualify for a mandatory waiver based on being subjected to battery or extreme cruelty.

*Examples of such evidence may include, but are not limited to: police reports, court records, news articles, trial transcripts, evidence you acted in self-defense, evidence you were a victim of abuse or battery, evidence you violated a protection order intended for your protection, and any credible evidence that is relevant to your request for a waiver.*

USCIS cannot approve your petition **unless** a waiver of the multiple-filing limitation is granted.

#### **Part 4. Biographic Information**

Provide the biographic information requested. Providing this information as part of your petition may reduce the time you spend at your USCIS ASC appointment as described in the **Biometric Services Appointment** section of these Instructions.

**Item Numbers 1. - 2. Ethnicity and Race.** Select the boxes that best describe your ethnicity and race.

##### **Categories and Definitions for Ethnicity and Race**

- 1. Hispanic or Latino.** A person of Cuban, Mexican, Puerto Rican, South or Central American, or other Spanish culture or origin, regardless of race. (**NOTE:** This category is only included under Ethnicity in **Part 4., Item Number 1.**)
- 2. American Indian or Alaska Native.** A person having origins in any of the original peoples of North and South America (including Central America), and who maintains tribal affiliation or community attachment.
- 3. Asian.** A person having origins in any of the original peoples of the Far East, Southeast Asia, or the Indian subcontinent including, for example, Cambodia, China, India, Japan, Korea, Malaysia, Pakistan, the Philippine Islands, Thailand, and Vietnam..
- 4. Black or African American.** A person having origins in any of the black racial groups of Africa.
- 5. Native Hawaiian or Other Pacific Islander.** A person having origins in any of the original peoples of Hawaii, Guam, Samoa, or other Pacific Islands.
- 6. White.** A person having origins in any of the original peoples of Europe, the Middle East, or North Africa.

**Item Number 3. Height.** Select the values that best match your height in feet and inches. For example, if you are five feet and nine inches, select “5” for feet and “09” for inches. Do not enter your height in meters or centimeters.

**Item Number 4. Weight.** Enter your weight in pounds. If you do not know your weight, or need to enter a weight under 30 pounds or over 699 pounds, enter “000.” Do not enter your weight in kilograms.

**Item Number 5. Eye Color.** Select the box that best describes the color of your eyes.

**Item Number 6. Hair Color.** Select the box that best describes the color of your hair.



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## Part 5. Petitioner's Statement, Contact Information, Declaration, Certification, and Signature

**Item Numbers 1.a. - 6.b.** Select the appropriate box to indicate whether you read this petition yourself or whether you had an interpreter assist you. If someone assisted you in completing the petition, select the box indicating that you used a preparer. Further, you must sign and date your petition and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). Every petition **MUST** contain the signature of the petitioner (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.

## Part 6. Interpreter's Contact Information, Certification, and Signature

**Item Numbers 1.a. - 7.b.** If you used anyone as an interpreter to read the Instructions and questions on this petition to you in a language in which you are fluent, the interpreter must fill out this section; provide his or her name, the name and address of his or her business or organization (if any), his or her daytime telephone number, his or her mobile telephone number (if any), and his or her email address (if any). The interpreter must sign and date the petition.

## Part 7. Contact Information, Declaration, and Signature of the Person Preparing this Petition, if Other Than the Petitioner

**Item Numbers 1.a. - 8.b.** This section must contain the signature of the person who completed your petition, if other than you, the petitioner. If the same individual acted as your interpreter and your preparer, that person should complete both **Part 6.** and **Part 7.** If the person who completed this petition is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this petition **MUST** sign and date the petition. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your petition is an attorney or accredited representative, he or she may also need to submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, or Form G-28I, Notice of Entry of Appearance as Attorney In Matters Outside the Geographical Confines of the United States, along with your petition.

**We recommend that you review your copy of your completed petition before you go to your biometric services appointment at a USCIS ASC.** At your appointment, USCIS will allow you to complete the petition process only if you are able to confirm, under penalty of perjury, that all of the information in your petition is complete, true, and correct. If you are not able to make that attestation in good faith at that time, we will require you to return for another appointment.

## What are the Requirements of the International Marriage Broker Regulation Act?

Under the International Marriage Broker Regulation Act (IMBRA), U.S. citizen petitioners are required to disclose information on any permanent protection or restraining order (civil or criminal) related to any specified crime described in **Part 3.** of these Instructions, and information on any convictions for any specified crime described in **Part 3.** of these Instructions. In addition, IMBRA requires USCIS to maintain a database to track multiple Form I-129Fs filed by the same petitioner. USCIS will notify petitioners upon approval of a second Form I-129F petition they filed and that their information has been entered into a multiple-visa petition tracking database. USCIS will enter into this database all additional Form I-129Fs that the petitioner files.

Once a petitioner has had two Form I-129Fs approved, and if an additional Form I-129F is filed less than 10 years after the date the first Form I-129F was filed, USCIS will notify both the petitioner and the beneficiary of the number of previously approved petitions listed in the database.

IMBRA also imposes requirements on IMBs. IMBs are required to obtain background checks on their U.S. clients and disclose the results of those checks to the foreign national clients before obtaining a foreign national's consent to disclose his or her personal contact information to a U.S. client.

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**NOTE:** The term “international marriage broker” and “IMB” refer to a corporation, partnership, business, individual, or other legal entity, whether or not organized under any law of the United States, that charges fees to provide dating, matrimonial or matchmaking services, or provide social referrals between U.S. citizens/lawful permanent residents and foreign national clients by providing personal contact information or otherwise facilitating communication between individuals.

The term is not used to refer to:

1. Traditional matchmaking organizations of a cultural or religious nature that operate on a non-profit basis and in compliance with the laws of the countries in which they operate, including the laws of the United States; or
2. Entities that provide dating services, but only if:
  - A. Their principal business does not provide international dating services between U.S. citizens or lawful permanent residents and foreign nationals; and
  - B. They charge comparable rates and offer comparable services to all individuals served regardless of sex or country of citizenship or nationality.

### **What Evidence Must You Submit?**

You must submit all evidence requested in these Instructions with your petition. If you fail to submit required evidence, USCIS may reject or deny your petition for failure to submit requested evidence or supporting documents in accordance with 8 CFR part 103.2(b)(1) and these Instructions.

Submit the primary evidence listed below to support your petition. If a primary evidence document is not available, you must submit a statement from the appropriate civil authority certifying that the primary evidence is not available.

You must then submit secondary evidence such as church or school records, baptismal certificates, U.S. census records, or other evidence to support your claim. If you can establish that secondary evidence is not available, you may submit two or more sworn affidavits by persons who are not parties to your petition, who were living at the time of the event, and who have direct personal knowledge of the event.

For additional information on required documentation, see the USCIS website at [www.uscis.gov/I-129F](http://www.uscis.gov/I-129F) or refer to the regulations in 8 CFR 214.2(k) that governs petitions for nonimmigrant alien fiancé(e)s and spouses.

#### **3. Evidence of U.S. citizenship which may include any of the following:**

- A. A copy of your birth certificate issued by a U.S. civil authority;
- B. A copy of your original Certificate of Naturalization;
- C. A copy of your original Certificate of Citizenship;
- D. A copy of your Form FS-240, Report of Birth Abroad of a Citizen of the United States;
- E. A copy of your valid, unexpired U.S. passport or passport card issued with a validity period of at least five years;  
or
- F. A statement executed by a U.S. consular officer certifying that you are a U.S. citizen and the bearer of a currently valid U.S. passport.

#### **4. Termination of Previous Marriages**

If either you or your beneficiary were married before, submit evidence that all previous marriages were legally terminated. Evidence of termination of previous marriages may include a divorce decree, annulment, or death certificate issued by a civil authority.

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## 5. Photographs

You **must** submit one color passport-style photograph of yourself and one color passport-style photograph of the beneficiary taken within 30 days of filing this petition. The photos must have a white to off-white background, be printed on thin paper with a glossy finish, and be unmounted and unretouched.

The color passport-style photos must be 2 by 2 inches. The photos must be in color with full face, frontal view on a white to off-white background. Head height should measure 1 to 1 3/8 inches from top of hair to bottom of chin, and eye height is between 1 1/8 to 1 3/8 inches from bottom of photo. Your head must be bare unless you are wearing headwear as required by a religious denomination of which you are a member. Using a pencil or felt pen, lightly print your name and A-Number (if any) on the back of the photo.

## 6. Evidence of Legal Name Change

If either you or your beneficiary use a name other than the one shown on evidence submitted in support of your petition, you must submit copies of the legal documents (such as a marriage certificate, adoption decree, or court order) reflecting the legal name change.

## 7. Form I-94 Arrival/Departure Record

If U.S. Customs and Border Protection (CBP) or USCIS issued you a Form I-94, Arrival/Departure Record, provide your Form I-94 number and date that your authorized period of stay expires or expired (as shown on your Form I-94). The Form I-94 number also is known as the Departure Number on some versions of Form I-94.

**NOTE:** You may visit the CBP website at [www.cbp.gov/i94](http://www.cbp.gov/i94) to obtain a paper version of an electronic Form I-94 if needed. If you cannot obtain the Form I-94 from the CBP website, it may be obtained by filing Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Record, with USCIS. See Form G-1055, available at [www.uscis.gov/forms](http://www.uscis.gov/forms), for specific information about the fees applicable to Form I-102.

**Passport and Travel Document Numbers.** If your beneficiary used a passport or travel document to travel to the United States, enter the passport or travel document information in the appropriate space on the petition, even if the passport or travel document is currently expired.

## 8. Evidence for Petitions to Classify a Fiancé(e) as a K-1 Nonimmigrant

In addition to the evidence described above, you must submit evidence of:

- A. Intention to Marry Within 90 Days of Entry.** Submit evidence that you and your fiancé(e) intend to marry within 90 days of your fiancé(e)'s entry as a K-1 nonimmigrant. Evidence of your intention to marry may include statements of intent to marry signed by both you and your fiancé(e) or any other evidence that establishes, by a preponderance of the evidence, your mutual intention; and
- B. In-Person Meeting.** Submit evidence that you and your fiancé(e) met in person during the 2-year period immediately before you filed this petition. Evidence of this meeting may include, but is not limited to, a written statement from you and/or your fiancé(e) stating the circumstances of your meeting, a copy of airline tickets, passport pages, or other evidence. If you believe you qualify for an exception to the in-person meeting requirement, submit evidence in support of the exception.

If you claim that the in-person meeting requirement would result in extreme hardship to you, submit evidence to support your claim.

If you claim that the in-person meeting requirement would violate strict and long-established customs of your fiancé(e)'s foreign culture or social practice, include evidence that any and all aspects of the traditional arrangements have been or will be met in accordance with the custom or practice.

## 9. Evidence for Petitions to Classify a Spouse as a K-3 Nonimmigrant

In addition to the evidence described in **Items 1. - 5.** above, you must submit:

- A. Form I-130.** Submit evidence that you filed Form I-130 on behalf of your beneficiary; and

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**B. Marriage Certificate.** Submit a marriage certificate, issued by the appropriate civil authority, showing your valid marriage to the beneficiary.

**NOTE:** You do not need to file Form I-130 on behalf of the child of a K-3 beneficiary in order for the child to obtain a K-4 visa. However, a K-4 nonimmigrant is only eligible to adjust to lawful permanent resident status if he or she is under 18 years of age when you and the K-3 parent marry and you file Form I-130 petition on the K-4's behalf before the K-4 reaches 21 years of age.

### Where To File?

Please see our website at [www.uscis.gov/i-129f](http://www.uscis.gov/i-129f) for the most current information about where to file this petition.

### Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at [www.uscis.gov/addresschange](http://www.uscis.gov/addresschange), or call the USCIS Contact Center.

**NOTE:** Do not submit a change of address request to the USCIS Lockbox.

### Processing Information

**Initial Processing.** Once USCIS accepts your petition, we will check it for completeness. If you do not properly complete this petition, you will not establish a basis for your eligibility and we may reject or deny your petition.

**Requests for More Information.** USCIS may request that you provide more information or evidence to support your petition. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

**Requests for Interview.** We may request that you appear at a USCIS office for an interview based on your petition. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

**Decision.** The decision on Form I-129F involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

### USCIS Forms and Information

To ensure you are using the latest version of this petition, visit [www.uscis.gov](http://www.uscis.gov).

### Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-129F, we will deny your petition and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

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## USCIS Compliance Review and Monitoring

By signing this petition, you have stated under penalty of perjury (28 U.S.C. section 1746) that all information and documentation submitted with this petition are complete, true, and correct. You also authorize the release of any information from your records that USCIS may need to determine your eligibility for the immigration benefit you are seeking and consent to USCIS verifying such information.

The Department of Homeland Security (DHS) has the authority to verify any information you submit to establish eligibility for the immigration benefit you are seeking at any time. Our legal authority to verify this information is in 8 U.S.C. sections 1103, 1155, and 1184, and 8 CFR Parts 103, 204, 205, and 214. To ensure compliance with applicable laws and authorities, we may verify information before or after your case is decided.

Agency verification methods may include, but are not limited to: reviewing public records and information; contacting through written correspondence, using the Internet, fax, other electronic transmission, or telephone; making unannounced physical site inspections of residences and locations of employment; and interviewing people. USCIS will use the information we obtain to assess your compliance with the laws and to determine your eligibility for an immigration benefit.

Subject to the restrictions under 8 CFR 103.2(b)(16), USCIS will provide you with an opportunity to address any adverse or derogatory information that may result from a compliance review, verification, or site visit before a decision is made on your request. For a visit after your request is approved, USCIS will provide you with an opportunity to address any adverse or derogatory information which may result in revocation or termination of an approval.

## DHS Privacy Notice

**AUTHORITIES:** The information requested on this petition, and the associated evidence, is collected under the Immigration and Nationality Act sections 214(d) and 8 Code of Federal Regulations 214.2(k).

**PURPOSE:** The primary purpose for providing the requested information on this petition is to petition USCIS for your fiancé(e)/spouse and that person's children to enter the United States. DHS uses the information you provide to grant or deny the benefit you are seeking.

**DISCLOSURE:** The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number, and any requested evidence, may delay a final decision or result in denial of your petition.

**ROUTINE USES:** DHS may share the information you provide on this petition and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS/ICE/CBP-001 - Alien File, Index, and National File Tracking System, DHS/USCIS-007 - Benefits Information System, and DHS/USCIS-018 Immigration Biometric and Background Check] and the published privacy impact assessment [DHS/USCIS/PIA-016(a) Computer Linked Application Information Management System and Associated Systems], which can be found at [www.dhs.gov/privacy](http://www.dhs.gov/privacy). DHS may also share this information as appropriate for law enforcement purposes or in the interest of national security.

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## Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 3.067 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the petition, preparing statements, attaching necessary documentation, and submitting the petition. The collection of biometrics is estimated to require 1 hour and 10 minutes. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0001. **Do not mail your completed Form I-129F to this address.**